

24NWCV00424 24NWCV00424

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Case Number: 24NWCV00424 Hearing Date: September 15, 2026 Dept: P

HYNES PACKING

COMPANY v. JADE SPEC LLC, ET AL.

CASE NO.: 24NWCV00424

HEARING: 09/15/2026 @

9:30 AM

#9

TENTATIVE ORDER

Plaintiff Hynes Packing Company's motion for attorney's fees and costs is GRANTED in the amount of \$20,689.24 reflecting \$18,112.50 in attorney's fees and \$2,576.74 in costs.

Moving party to give notice.

Plaintiff Hynes Packing Company dba Koret Business Park - Santa Fe Springs (Plaintiff) moves for an award of attorney's fees and costs.

Background

This is a breach of contract action. On February 8, 2024, Plaintiff filed this action against Defendants Maimouna Jade Spec LLC, a Nevada Corp., Dylan Rodriguez, Steve Weiss (collectively, Defendants) and Does 1 to 10 for commercial unlawful detainer. Following the Court's ruling on Defendants' first demurrer, on November 7, 2024, Plaintiff filed a first amended complaint

(FAC) against Defendants and Does 1 to 20 alleging breach of contract.

The FAC alleges the following: Plaintiff owns the real property located at 13128 Telegraph Road Unit H, Santa Fe Springs, California 90670 (Subject Property), a multi-tenant industrial building. (FAC, ¶¶ 1, 6.) On February 27, 2020, Defendants each entered a written agreement (Agreement) to rent the Subject Property as a month-to-month tenancy. (FAC, ¶ 7.) The complaint alleges Defendants have failed to pay any rent after January 1, 2022. (FAC, ¶ 9.) On January 25, 2024, Weiss was served with a 3-day notice to pay rent or quit on behalf of all tenants, and Defendants subsequently refused to pay rent or vacate the Subject Property. (FAC, ¶ 12.) The FAC asserts a single cause of action for breach of contract against all Defendants.

On July 8, 2026, this matter was called for a court trial and the parties informed the Court that the case had settled.

Legal Standard

Civil Code section 1717 subdivision (a) provides, “[i]n any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs.” “Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs.” (Code Civ. Proc., § 1021.)

The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney’s fee award, courts typically determine what is reasonable through the application of the “lodestar” method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute

provides for another method of calculation].)

Discussion

Plaintiff moves for an award of attorney's fees and costs pursuant to the parties' commercial lease (Lease) and the settlement reached between the parties. This motion is unopposed.

Plaintiff requests a total of \$22,039.24 reflecting (1) \$17,212.50 for 38.25 hours in attorney fees actually incurred through July 14, 2026; (2) \$2,576.74 in recoverable litigation costs and expenses; and (3) plus up to \$2,250.00 for anticipated fees arising out of this motion.

Entitlement

to Fees & Prevailing Party

Plaintiff provides a copy of the Lease entered into between Plaintiff and Defendants. The Lease provides the following:

31. Attorneys Fees. If any Party brings an action or proceeding involving the Premises whether founded in tort, contract or equity, or to declare rights hereunder, the Prevailing Party (as hereafter defined) in any such proceeding, action, or appeal thereon, shall be entitled to reasonable attorneys' fees. Such fees may be awarded in the same suit or recovered in a separate suit, whether or not such action or proceeding is pursued to decision or judgment. The term, "Prevailing Party" shall include, without limitation, a Party who substantially obtains or defeats the relief sought, as the case may be, whether by compromise, settlement, judgment, or the abandonment by the other Party of its claim or defense. The attorneys' fees award shall not be computed in accordance with any court fee schedule, but shall be such as to fully reimburse all attorneys' fees reasonably incurred. In addition, Lessor shall be entitled to attorneys' fees, costs and expenses incurred in the preparation and service of notices of Default and consultations in connection therewith, whether or not a legal action is subsequently commenced in connection with such Default or resulting Breach.

(Orloff Decl., ¶ 3, Exh. A.) Plaintiff contends that Civil Code section 1717, subdivision (b)(2), which provides that ordinarily there is no prevailing party when an action has been dismissed pursuant to a settlement, does not apply here. Plaintiff refers to Jackson v. Homeowners Association

Monte Vista Estates-East (2001) 93 Cal.App.4th 773, 777-78 in which parties entered into a settlement agreement which reserved the issue of an award of attorney's fees to the trial court. The Court of Appeal, in affirming the trial court's award of attorney's fees, concluded "that 'where there is no dismissal, a settling party may move for contractually based attorney fees under section 1717 unless the right to them was expressly or impliedly waived in the settlement agreement.'" (Id., at p. 784-85.)

The Jackson court noted that the settlement agreement was enforceable under Code of Civil Procedure section 664.6 and that "[u]nder the settlement agreement, the action would not be dismissed until the various actions contemplated in the agreement had been taken." (Id., at p. 785-86.) The court reasoned "[s]ince all substantive issues in the case, except for the award of attorney fees, have been resolved by the settlement agreement, the trial court could determine the prevailing party." (Id., at p. 786.) Plaintiff shows that like in Jackson, here, the Court approved the settlement, stated that "[a]ttorney's fees shall be sought by noticed motion," and ordered Plaintiff's counsel to file a request for dismissal while maintaining jurisdiction under Code of Civil Procedure section 664.4. (Order, 7/8/26.) Thus, under Jackson, the Court agrees that it may determine the prevailing party.

Plaintiff contends that pursuant to the settlement, it is the prevailing party under the Lease as it obtained \$90,000, possession and control of the premises, final property-removal conditions, protection of fixtures, indemnity for move-related damage, and finality as to the security deposit. (Order, 7/8/26.) Plaintiff argues that this is consistent with its litigation objections as its complaint sought possession, \$45,525 in then-accrued rent, ongoing damages, and pre-judgment interest and fees. Based on the recovery sought by Plaintiff, the Court agrees that Plaintiff is the prevailing party as it recovered greater relief in this action on the Lease. (Civ. Code, § 1717, subd. (b)(1) ["the party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract."].)

Reasonableness of the Fees

In assessing a motion for attorney's fees, "[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended." (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 38.)

A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) “[C]ounselors’ time records [should be used] as the starting point for [a court’s] lodestar determination.” (Horsford v. Board of Trustees of CSU (2005) 132 Cal.App.4th 359, 397.)

Plaintiff seeks attorney’s fees and costs arising out of both the unlawful detainer action (Case No. 24NWUD02512) between the parties as well as the instant civil action. Plaintiff contends that the nature of the two actions are intertwined because they seek possession and damages under the same Lease. The Court finds this request consistent with the terms of the Lease. (See Orloff Decl., ¶ 3, Exh. A.)

Plaintiff provides a copy of Plaintiff’s counsel Paul Orloff’s billing entries. (Orloff Decl., ¶ 11.) Mr. Orloff has an hourly rate of \$450 and 38.25 hours of work. (Orloff Decl., ¶ 2.) Mr. Orloff explains that this action remained active for twenty-nine months, involved possession and lease damages, and required law and motion and trial preparation. (Orloff Decl., ¶ 12.) Mr. Orloff has practiced civil litigation for more than twenty-four years including in commercial lease disputes, contract litigation, and unlawful detainer. (Orloff Decl., ¶ 2.) The Court finds this amount reasonable.

Plaintiff additionally seeks up to \$2,250 or “up to 5.0 additional hours to finalize and file the motion, review any opposition, prepare a reply, and appear at the hearing.” (Orloff Decl., ¶ 13.) Given that this motion is unopposed, the Court reduces this request by 3 hours, or \$1,350.

Costs

Plaintiff also requests \$2,576.74 in litigation costs. This “consists of \$1,585.40 in filing and e-filing charges, \$782.74 in service-of process charges, \$145.00 in sheriff fees, \$15.60 in copies, and \$48.00 in trial binders and exhibit dividers.” (Orloff Decl., ¶ 12.) Plaintiff’s request for costs is granted.

In sum, Plaintiff’s motion for attorney’s fees and costs is GRANTED in the amount of \$20,689.24 reflecting \$18,112.50 in attorney’s fees

and \$2,576.74 in costs.